

Court No. - 36

Case :- WRIT - C No. - 2788 of 2013

Petitioner :- M/S Allahabad Enterprises Pvt. Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Bachchoo Lal,J.

Learned counsel for the petitioner agree that this matter would be cognizable by the Bench dealing with writ petitions relating to Local Bodies including Corporations. As such this Bench will not have jurisdiction to entertain this writ petition.

Put up this petition, as a fresh case, before the appropriate Bench on 30.1.2013.

Order Date :- 24.1.2013

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(Bachchoo Lal, J.) (Vineet Saran, J.)

Court No. - 21

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Petitioner :- M/S Allahabad Enterprises Pvt. Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

As prayed on behalf of Sri B. C. Rai, learned counsel for the petitioner, the case is directed to be put-up as fresh on 19th February, 2013.

Order Date :- 30.1.2013

AS

Court No. - 29

Case :- WRIT - C No. - 2788 of 2013

Petitioner :- M/S Allahabad Enterprises Pvt. Ltd.

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Sunil Ambwani,J.

Hon'ble Bharat Bhushan,J.

We have heard Sri B.C. Rai for the petitioner. Sri Mahboob Ahmad appears for respondent Nos. 2 and 3.

A short question has been raised in this writ petition as to whether additional charge for protective load facility can be levied from the bulk consumer of electricity, without any request by an application and agreement, entered into between the electricity department, to facilitate uninterrupted power supply of twenty four hours, provided in clause 4.27 of the Electricity Supply Code 2005.

Clause 4.27 of the Electricity Supply Code 2005, provides as follows:-

"4.27 Protective Load:

The Licensee may grant protective load in exceptional cases, to be specified in agreement to those consumers, who have opted for twenty four hours use of power, on the following terms and conditions: -

(a) An additional charge as specified in the latest Rate Schedule (in the Tariff Order) shall be recovered each month through regular billing if any.

(b) The protective load may be subjected to any emergency rostering.

(c) The charges for protective load shall not count towards minimum charge for the main supply.

(d) Protective load shall also be utilised for lights & fans and drinking water purposes.

(e) The consumer availing the facility of protective load shall, however, not be subjected to scheduled power cut imposed from time to time by the State Government or the Licensee. During the period of scheduled power cut, the protective load shall not

exceed the sanctioned protective load.

(f) Protective load shall be sanctioned only to such consumers, who are given supply through an independent feeder at 11 KV and above emanating from a sub-station.

(g) Protective load shall not be released or continued to such consumer, against whom there are arrears towards the Licensee. The arrears, which are sub-judice before any competent court and have been stayed, shall not be treated as arrears.

(h) If it is brought to the notice of the SLDC / Licensee that a particular consumer is using electricity during the period he is not permitted to do so, exceeding the sanctioned protective load, the feeder supplying such a consumer shall be opened to de-energize it from the source sub-station."

Clause 10 of General Conditions of Tariff Order dated 31.03.2010.

"10. Protective Load. Consumers getting supply on independent feeder at 11 KV and above voltage, emanating from sub-station, may opt for facility of protective load and avail supply during the period of scheduled rostering imposed by the licensee, except under emergency rostering. An additional charge @ 100 % of base demand charges fixed per month shall be levied on the contracted protective load each month. During the period of scheduled rostering, the load shall not exceed the sanctioned protective load. In case the consumer exceeds the sanctioned protective load during scheduled rostering, he shall be liable to pay twice the prescribed charges for such excess load. The charges on account of protective load shall not be taken into account towards computation of minimum charge."

Sri Mahboob Ahmad submits that the petitioner was supplied 24 hours use of power, and for that purpose, even if no agreement was executed, the respondents are entitled to levy protective load charge. He submits that the petitioners having availed the facility, cannot now turn around, and say that they had not made any application, and are not willing now to avail the facility of protective load.

Clause 4.27 of the Electricity Supply Code 2005, provides for protective load to be granted to the licensee in exceptional cases, to be specified in agreement to those consumers, who have opted for twenty four hours use of power on the terms and conditions that an additional charge as specified in the latest rate schedule in the Tariff Order shall be

recovered each month through regular bill, and that protective load may be subjected to any emergency rostering. The charges for protective load are not counted towards minimum charge for the main supply, and that it shall not be utilized for lights and fans and drinking water purpose. The conditions further provide that the consumer, availing the facility of protective load, shall not be subjected to schedule power cut imposed from time to time by the State Government or the Licensee. During the period of scheduled power cut, the protective load shall not exceed the sanctioned protective load and that the protective load shall be sanctioned only to such consumers who are given supply through an independent feeder at 11 KV and above emanating from a sub-station.

It is not denied that no agreement was executed.

Sri B.C. Rai, learned counsel for the petitioner makes a statement that the petitioner has not availed the protective load facility, and that he had neither applied nor is he willing to make any application for such facility on payment of additional charges.

In the present case, the petitioner did not opt for protective load facility, and that the additional charges cannot be levied, and recovered from them. So far as previous billing is concerned, the petitioner may make representation to the Executive Electricity Engineer, Electricity Urban Distribution Division, Bamrauli, Allahabad, to adjust the additional charge, in the future bills. Since the petitioner has not opted for protective load facility, such facility will not be offered to the petitioner nor any charges shall be levied in the regular bills.

The writ petition is accordingly **disposed of**.

Order Date :- 28.2.2013

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